SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday July 21, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. **Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.**

2. **Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org**

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

https://sanmateocourt.zoomgov.com/ **Meeting ID:** 160 624 8977 **Password:** 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM
LINE 1
22-CIV-03022 ANTHONY FREEMAN VS. SHELLPOINT MORTGAGE SERVICING, ET AL.

ANTHONY FREEMAN DAVID A. BUTLER
SHELLPOINT MORTGAGE SERVICING

DEFENDANT NEWREZ LLC DBA SHELLPOINT MORTGAGE SERVICING'S MOTION TO SET ASIDE DEFAULT

TENTATIVE RULING:

Defendant NewRez LLC dba Shellpoint Mortgage Servicing moves to set aside default previously entered against it in this action.

Defendant's motion to set aside default is GRANTED.

Defendant's request for judicial notice of several federal court documents filed in the Central District of California concerning a Trademark Violation Action filed by Defendant against John Brosnan, Shellpoint Mortgage Servicing (a California corporation), and Shellpoint Mortgage Servicing LLC, is GRANTED. (See Defendant's RJN, Exs. E-H.)

BACKGROUND

Plaintiff initiated this action on July 25, 2022. Plaintiff filed a proof of service purporting to have served Defendant by substituted service on September 6, 2022. On October 18, 2022, the Court entered a default against Defendant, upon Plaintiff's request. Plaintiff then failed to file any request for default judgment against Defendant over the next three years, despite numerous continuances granted by this Court. On June 16, 2025, Plaintiff filed a First Amended Complaint.

Defendant filed the instant motion to set aside default on April 13, 2026. As addressed further below, Defendant alleges that Plaintiff failed to serve Defendant with process and, instead, inadvertently served an unrelated entity, Shellpoint Mortgage Servicing LLC, which has infringed on Defendant's trademark and has since been enjoined from accepting service on behalf on Defendant. (Barnes Decl., ¶¶ 9-11; Defendant's RJN, Exs. E-H.) Defense counsel claims he only became aware of this action through discussions with Plaintiff's counsel in a separate action between the parties and only became aware of the defective service and erroneous default against Defendant when the court clerk rejected a demurrer he attempted to file in this action on November 12, 2025. (Cahill Decl., ¶¶ 3-5.)

LEGAL ANALYSIS

Code of Civil Procedure, section 473, subdivision (d) is proper basis for setting aside the default for lack of service of process. The statute provides:

> The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

(Code Civ. Proc., § 473, subd. (d).)

Because service and default are allegedly void on their face, the court has the power to vacate the default ***at any time*** upon a reasonable showing. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 215, 225.) Thus, motions to set aside a default made on the grounds that service and the default were void on their face are not subject to the time limitations of Code of Civil Procedure section 473.5. (*Id.*, at p. 225 [holding that "a section 473(d) motion to vacate judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation."].)

The provisions of section 473 are to be liberally construed and sound policy favors determination on the merits. (*Maynard v. Brandon* (2005) 36 Cal.4th 364, 371.) Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. (*Id.*, at p. 371-72.)

Here, Plaintiff's proof of service purporting to serve Defendant Shellpoint Mortgage Servicing was served on Stephanie Cho, a manager authorized to accept service, at 3680 Wilshire Blvd, Suite P04-1313, Los Angeles, CA 90010. (Proof of Service, filed October 18, 2022.) However, as indicated on the California Secretary of State's website, Defendant's registered agent for service is Corporation Service Company, located at 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California, 95833. (Barnes Decl., ¶ 5, Ex. A.)

Defendant explains that the confusion regarding service of process is the product of an unrelated entity – Shellpoint Mortgage Servicing LLC – infringing on Defendant's trademark. (MPA, 3:26 – 4:17; Defendant's RJN, Exs. E-H.) In December of 2022, Defendant filed a lawsuit in federal court against John Brosnan and his entity, Shellpoint Mortgage Servicing LLC, for violation of the Lanham Act and Trademark Infringement. (Defendant's RJN, Ex. E.) On January 30, 2023, the district court entered an order granting the motion for preliminary injunction and entered a Preliminary Injunction which, *inter alia*, enjoined Brosnan and Shellpoint Mortgage Servicing LLC from "accepting service of process or other documents intended for NewRez LLC dba Shellpoint Mortgage Servicing, including summonses, complaints, subpoenas, or any other legally-required notices naming or involving NewRez LLC dba Shellpoint Mortgage Servicing." (*Id.*, Exs. E, F.) The Court thereafter entered a default judgment and permanent injunction against Defendants Shellpoint Mortgage Servicing (a California corporation) and Shellpoint Mortgage Servicing LLC, permanently enjoining John Brosnan and his entities from using or applying the registered mark "Shellpoint Mortgage Servicing," or any confusingly similar designation, as a trademark, business name, domain name, email address, or otherwise. (*Id.*, Ex. H.)

Defendant's counsel Jonathan Cahill has submitted a declaration stating that he only became aware of this action through conversations with Plaintiff's counsel in a separate action between the parties. (Cahill Decl., ¶ 3.) Mr. Cahill states that Plaintiff's counsel never informed him that a default had been sought or entered against Defendant in this action. (*Ibid.*) The parties engaged in settlement discussions and, when those failed, they met and conferred regarding demurrers in both actions. (*Ibid.*) On November 12, 2025, after the court rejected a demurrer filed by Defendant is this action, Mr. Cahill reviewed the Register of Actions and discovered that a proof of service had been filed showing service on an unrelated entity and that a default had been entered against Defendant on the basis of that defective service. (*Id.*, ¶¶ 4,5.) Mr. Cahill then addressed the issue with Plaintiff's counsel via email and telephone numerous times through February of 2026 and was repeatedly assured that counsel was discussing setting aside the default with his client. (*Id.*, ¶ 6, Ex. C.)

Plaintiff argues that a defendant may not attempt to avoid service by adopting the same name as another entity to confuse plaintiffs and that alter ego liability applies where a defendant utilizes separate corporate structures to avoid liabilities or circumvent statutory requirements. (Oppo., 4:10 – 8:15.) However, Plaintiff has submitted no evidence supporting that Shellpoint Mortgage Servicing LLC is affiliated with Defendant or that Defendant has deliberately adopted its name to confuse litigants and evade liability.

Based on the evidence submitted by Defendant, the Court finds that Plaintiff failed to serve Defendant with process in this action. The default entered against Defendant is therefore void. Under Code of Civil Procedure, section 473, subdivision (d), the Court can set aside the erroneous default at any time. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 215.) The Court finds good exists to do so here.

Accordingly, Defendant's motion to set aside default is GRANTED. Defendant shall file its demurrer (or other responsive pleadings if the parties are able to resolve their issues) within five days after notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE 2
23-CIV-00420 JESSICA GONZALEZ VS TABITHA DATTE

JESSICA GONZALEZ DAVID BIBIYAN
TABITHA DATTE

COMPLIANCE HEARING

TENTATIVE RULING:

On November 4, 2026 with written order filed November 24, 2025, this court provided approval of the settlement in this Private Attorney's General Act (PAGA) case and the court set a compliance hearing for July 21, 2026.

On July 14, 2026, Yesenia Henriquez of Phoenix Settlement Administrators (Phoenix), the settlement administrator, filed a declaration setting forth the work that Phoenix performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

According to Henriquez's declaration, all disbursements have been made and the time for cashing the checks has passed (the deadline was July 2, 2026). Phoenix updated settlement members' addresses. The declaration states that there are 115 checks, totaling $7,575.99 that remain uncashed. As previously ordered, the court orders Phoenix to remit the uncashed funds to the Legal Aid at Work. Phoenix is ordered to file in this court a declaration within seven days of notice of entry of order confirming that the funds have been remitted to Legal Aid at Work with instructions that the funds are for use in San Mateo County. The declaration shall be filed, served, and emailed to Department 4. Once this declaration is filed, the case will be fully resolved and shall be closed upon the filing of Phoenix's declaration confirming the remitting of the funds.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 3

24-CIV-07699 NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS LIFT ENRICHMENT, INC.

NINA BOGDANOFF, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED	LEONARD EMMA
LIFT ENRICHMENT, INC.	MARYAM MALEKI

PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

CONTINUED FROM 6/9/2026, 6/16/2026, AND 7/7/2026 AT DEFENDANT'S REQUEST

TENTATIVE RULING:

The court repeats the tentative ruling posted for the June 9, 2026 hearing. Defendant contests the tentative ruling.

Plaintiff Nina Bogdanoff's Motion for Leave to File a Second Amended Complaint is GRANTED.

In this case, on December 6, 2024, plaintiff Bogdanoff filed a wage and hour class action complaint against defendant Lift Enrichment, Inc., which included an overtime claim. On February 10, 2025, plaintiff filed a first amended complaint, which added a Private Attorney General Act (PAGA) claim and deleted the overtime claim because she did not have standing to assert it. On March 20, 2025, defendant answered the first amended complaint. Now, plaintiff seeks to file a second amended complaint to add two individuals, Tyler Fleeman and Nicky Grier-Fairley, as class and PAGA representatives and to add a cause of action for failure to pay overtime. Defendant opposes arguing that the proposed new plaintiffs did not submit their PAGA notices until after the filing of the complaint and thus they cannot claim the benefit of the December 6, 2024 filing date.

The motion was originally scheduled to be heard on May 6, 2026, but the court had question on whether the two new proposed plaintiff could revive a claim that was originally pled in the original complaint but then omitted from the operative pleading. The parties submitted supplemental briefing.

Public policy considerations favor the use of the court's discretion to grant a party's request for leave to amend a pleading, as reflected in California case law. For example, our Supreme Court has stated that "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–27.)

Accordingly, in deciding that the court below had abused its discretion in denying such a request, the Court of Appeal later explained that:

> If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.

(*Morgan v. Superior Ct. of Cal. in & for Los Angeles County* (1959) 172 Cal.App.2d 527, 530 (collecting citations).) Recently, two different Courts of Appeal have reversed a trial court who refused leave to amend after a demurrer, even where it appeared doubtful that plaintiff could state a cause of action. (*Black v. Los Angeles County Metropolitan Transportation Authority* (2025) 116 Cal.App.5th 677; *Sproul v. Vallee* (2025) 116 Cal.App.5th 285.) The same public policy considerations apply to this motion to amend.

In this case, both parties agree that the law liberally grants motions to amend, but disagree on whether legally the new proposed plaintiffs may join this action and obtain the benefit of Bogdanoff's PAGA notice, which was much earlier than the date of Fleeman's and Grier-Fairley's PAGA notice.

As to the court's question, the omission of the overtime claim in the amended complaint does not operate as a bar to reviving the cause of action because the dismissal is without prejudice. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1142-1143.) Thus, the fact that the overtime complaint was omitted from the amended complaint does not by itself bar the revival of the claim.

A noted practice guide explains the requirements for a complaint to relate back. "For an amended complaint to relate back to the original complaint as to parties named in it by their true names, it must:

- — be based on the 'same general set of facts' as the original; and
- — seek recovery against the same defendants for the 'same injuries'; and
- — refer to the 'same incident'—i.e., the 'same accident' caused by the 'same offending instrumentality.' [*Barrington v. A. H. Robins Co.* (1985) 39 C3d 146, 150, 216 CR 405, 407; *Norgart v. Upjohn Co*. (1999) 21 C4th 383, 408-409, 87 CR2d 453, 471-472; *Fix the City, Inc. v. City of Los Angeles* (2024) 100 CA5th 363, 374, 319 CR3d 119, 126; see *Pointe San Diego Residential Comm., L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 CA4th 265, 277, 125 CR3d 540, 550—'critical inquiry is whether the defendant had adequate notice of the claim based on the original pleading,' and 'in applying the relation-back analysis, courts should consider the strong policy in this state that cases should be decided on their merits' (internal quotes omitted); *Hutcheson v. Sup.Ct. (UBS Fin'l Services, Inc.)* (2022) 74 CA5th 932, 940, 290 CR3d 60, 66]"

(*Cal. Prac. Guide: Civ. Proc. Before Trial* (TRG, June 2026 update) § 6:735 (Rutter Guide).)

"It is the sameness of the facts rather than the rights or obligations arising from those facts that is determinative. Thus, amendments alleging a new theory of liability against the defendant relate back to the original complaint, so long as based on the same set facts [sic] previously alleged. [*Amaral v. Cintas Corp. No. 2* (2008) 163 CA4th 1157, 1199-1200, 78 CR3d 572, 606].” (Rutter Guide, *supra*, §6:736.)

“But a new plaintiff cannot be joined after the statute of limitations has run where plaintiff seeks to enforce an independent right or to impose greater liability upon the defendant. In such cases, the amended complaint does not relate back to the filing of the original. [*Bartalo v. Sup.Ct. (Rosman)* (1975) 51 CA3d 526, 533, 124 CR 370, 374; *Quiroz v. Seventh Ave. Ctr.* (2006) 140 CA4th 1256, 1278, 45 CR3d 222, 238 (citing text)]” (Rutter Guide, *supra*, § 6:755.)

In this case, defendants argues that *Hargrove v. Legacy Healthcare, Inc.* (2022) 80 Cal.App.5th 782 (*Hargrove*) bars plaintiff’s second amended complaint, but *Hargrove* supports amendment. The *Hargrove* court following *Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932,939-940, held a new plaintiff “may substitute into this action, and her PAGA claim may relate back to the original complaint if she meets PAGA's prerequisites (standing, notice, & statute of limitations) and the amended complaint is able to relate back to the original complaint (i.e., it rests on the same general set of facts, involves the same injury, & involves the same cause of injury).” (*Hargrove*, at p. 791.) The reason that the new plaintiff could not substitute into the action in *Hargrove* was because she did not work at the defendant company during the same time period as the original plaintiff and thus did not “rest on the same general set of facts or involve the same injury.” (*Id*. at p. 793.) In this case, in contrast as alleged, all three plaintiffs were employed by defendants during all times relevant to the complaint. (SAC, ¶¶ 1-3.)

The allegations of the FAC and SAC arises from the same set of facts and seeks recovery against defendants for the same injuries arising from defendants’ employment policies and practices. The FAC alleges that “Plaintiffs and Class Members were not properly paid for all hours that they spent working” and “Defendants failed to pay Plaintiff and Class Members for all hours worked.” (FAC, ¶¶ 13, 18; see also ¶¶ 6, 26(4), 62, Prayer (5), all referring to failure to pay for “all hours worked”.) These allegations in the FAC were sufficient to put defendants on notice that they should prepare a defense based on an alleged failure to pay all hours spent working.

The case of *Estrada v. Royalty Carpet Mills, Inc.* (2022) 76 Cal.App.5th 685 (*Estrada*) is instructive. In *Estrada*, plaintiffs sued a company which had various facilities, three of which were relevant to the lawsuit. (*Id.*, at p. 698.) There were two original named plaintiffs, each of whom was from a different facility, and they sought leave to amend their SAC to add 11 new named plaintiffs, some of whom worked at the third facility, as well as an allegation that the third facility “had a unique policy that prevented employees from leaving the facility during meal periods.” (*Id*. at p. 699.)

The *Estrada* court first found that the original named plaintiffs’ proposed class covered employees from the third facility, and that the proposed class in the TAC “was substantially the same as the SAC.” (*Estrada*, *supra* 76 Cal.App.5th at p. 717.) The court then found as follows as to the new claim:

> [T]he Porterville meal period claim alleged in the TAC is based in the same facts, injury, and instrumentality as the SAC's meal period claims: Royalty failed to provide its employees at Dyer, Derian, and Porterville with proper meal periods and failed to provide premium pay under section § 226.7. The exact nature of the noncompliant meal periods at Dyer and Derian (untimely meal periods) was different than Porterville (on-premises meals). But these two theories are still grounded in plaintiffs' overall allegations that Royalty was not providing its employees at the three facilities with compliant meal periods and was not providing premium pay over the same period.

(*Estrada*, *supra* 76 Cal.App.5th at p. 718.) Similarly, here, the proposed SAC's overtime claim is grounded in plaintiff's overall claim that defendants failed to properly pay Plaintiff and Class Members for all hours spent working. As the *Estrada* court held, "[t]here was sufficient information in the SAC 'to permit [the defendant] to gather and preserve the relevant materials and begin to conduct discovery and prepare a defense to the claims that were later refined and augmented in the amended complaints.' " (*Id*. at 718-719 [citing *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 278.])

As for the proposed plaintiffs, the *Estrada* court found that "[s]ince the on-premises meal policy claim in the TAC relates back to the SAC, it was permissible for plaintiffs to amend the SAC and add Porterville employees with standing to bring it." (*Estrada*, *supra* 76 Cal.App.5th at p.719.)

Regarding the PAGA claims, both proposed plaintiffs fell within the definition of the class as stated in the FAC, and both gave the LWDA notice of their claims prior to the filing of this motion, therefore they have exhausted administrative remedies and their claims relate back.

Hutcheson v. Superior Court (2022) 74 Cal.App.5th 932 (*Hutcheson*), which defendants attempt to distinguish, also supports amendment. In *Hutcheson*, an employee sued his employer seeking PAGA remedies on behalf of aggrieved employees, and a second employee sued the same employer under PAGA about a year later. (*Hutcheson* at 936-937.) The employee who filed the second lawsuit sought to intervene in the first employee's lawsuit and replace him, but the parties disagreed over whether the second employee's claim would relate back to the time of filing of the first lawsuit. (*Id*. at p. 937.)

The court found that "[a]t the time [the first employee] filed his original complaint, in February 2018, [the second employee] met the standing requirements for an aggrieved employee under section 2699, subdivision (c). That is because [the second employee] was a former employee of UBS, and the alleged violations had also been committed against him." (*Hutcheson*, *supra*, 71 Cal.App.5th at p. 941.) The court concluded that "[t]he substitution of [the second employee] for [the first employee] does not expand the scope of the original complaint filed by [the first employee]." (*Ibid*.)

Here, the FAC defined the class as "[a]ll persons employed by Defendants in the State of California in a nonexempt position who performed work for Defendants at any time within four years prior to the date of the filing of this Complaint." (FAC, ¶ 24.) The proposed SAC alleges as to both proposed plaintiffs: "During all times relevant to this Complaint, Plaintiff was employed by Defendants as a non-exempt hourly employee." (Proposed SAC, ¶¶ 1-3.) As in *Hutcheson*, the proposed plaintiffs therefore "stood to recover civil penalties if [Plaintiff Bogdanoff]'s case were proved." (*Hutcheson*, *supra*, at 941.) And as in *Hutcheson*, both proposed plaintiffs here gave the LWDA notice well before the filing of this motion and the proposed SAC. (See Proposed SAC, ¶¶ 13-14.)

Since the addition of the overtime claim and the proposed plaintiffs do not improperly expand the scope or nature of the claims, there is no prejudice as the law defines it by the filing of the proposed SAC. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489 [change in legal theory not prejudice]; Rutter Guide, *supra*,§ 6:656 *et seq*.) Further, the filing of this motion was not untimely so as to cause prejudice to defendants. Plaintiff filed her initial complaint on December 6, 2024 and her FAC on February 10, 2025. The case was then stayed from March 20, 2025 to September 5, 2025 based on defendants' request for an early evaluation conference, and proposed Plaintiffs submitted PAGA notice in August and September 2025, respectively. Plaintiff informed defendants of her desire to amend the FAC and add the proposed plaintiffs and overtime claim by December 2025. (Declaration of Leonard Emma ISO Leave to Amend, filed Feb. 27, 2026, ¶ 6.)

The amended complaint is not deemed filed. It shall be filed and served within five court days of notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 4

24-CIV-08041 SHOBHANA HARTMAN VS. GENERAL MOTORS, LLC.

SHOBHANA HARTMAN	LARRY W CHAE
GENERAL MOTORS, LLC.	XYLON DAVID QUEZADA

GENERAL MOTORS LLC'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Defendant General Motors LLC's demurrer to the fifth cause of action for fraudulent inducement-concealment raised in Plaintiff Shobhana Hartman's Second Amended Complaint (hereinafter "SAC"), filed March 17, 2026, is SUSTAINED WITHOUT LEAVE TO AMEND.

The underlying lawsuit is a Song-Beverly Act action regarding plaintiff's January 2, 2020, warranty contract with Defendant GM regarding a 2020 Cadillac XT6, vehicle identification number 1GYKPDRS8LZ134541 ("subject vehicle"), which was manufactured and/or distributed by Defendant GM. The subject vehicle was purchased at GM authorized dealer Michael Stead Cadillac in Walnut Creek, California. (SAC ¶ 6.)

Defendant demurs to the fifth cause of action raised in the SAC as barred by the statute of limitations, for failing to state sufficient facts to establish the fraud cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e) and for failure to allege a transactional relationship giving rise to a duty to disclose.

On July 13, 2026, Plaintiff filed a Notice of Non-Opposition and stated that Plaintiff does not oppose the demurrer. Given the notice of non-opposition filed by plaintiff through counsel, the Court finds it appropriate to sustain the demurrer WITHOUT LEAVE TO AMEND. However, the Court asks that in the future, if a party is not going to oppose a motion, that the motion be taken off calendar and a stipulation entered. This court used the valuable resources of research attorneys, the clerk's office, and a judge to file and review the papers, which resources could have been used for other cases.

Accordingly, demurrer is SUSTAINED as to the fifth cause of action.

Defendant has ten (10) days from service of written notice of entry of order by to answer. (Cal. Rules of Court, rule of Court 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 5

24-CIV-08041 SHOBHANA HARTMAN VS. GENERAL MOTORS, LLC.

SHOBHANA HARTMAN	LARRY W CHAE
GENERAL MOTORS, LLC.	XYLON DAVID QUEZADA

GENERAL MOTORS LLC'S MOTION TO STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Defendant General Motors LLC's unopposed motion to strike to the fifth cause of action for fraudulent inducement-concealment raised in Plaintiff Shobhana Hartman's Second Amended Complaint (hereinafter "SAC"), filed March 17, 2026, is GRANTED.

Background

The underlying lawsuit is a Song-Beverly Act action regarding plaintiff's January 2, 2020, warranty contract with Defendant GM regarding a 2020 Cadillac XT6, vehicle identification number 1GYKPDRS8LZ134541 ("subject vehicle"), which was manufactured and/or distributed by Defendant GM. The subject vehicle was purchased at GM authorized dealer Michael Stead Cadillac in Walnut Creek, California. (SAC ¶ 6.)

Defendant brings the instant motion to strike on the basis that there is no basis alleged in the SAC for supporting a claim for punitive damages. The Court agrees.

Legal Standard

A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Code Civ. Proc. § 437; *Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) Where there are grounds for a demurrer and a motion to strike, they must be filed together and noticed for hearing at the same time. (Code Civ. Proc. § 435, subd. (b)(3) and Cal. Rules of Court, rule 329.) A motion to strike can be made to strike irrelevant, false or improper matter inserted in any pleading or to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of the court. (Code Civ. Proc. § 436.)

Here, defendant's demurrer to the only cause of action in the SAC supporting a prayer for punitive damages, the fifth cause of action for fraudulent concealment, has been sustained. Absent a cause of action asserting fraud as an element the Court finds there is no basis for assessing punitive damages. Accordingly, the motion to strike the prayer for punitive damages is GRANTED.

The Court notes that of the remaining four causes of action alleged in the SAC, damages for the first three are set forth in the Song-Beverly Consumer Warrant Act, Civil Code section 1794 and do not include punitive damages. Though the double civil penalties “have been likened by courts to punitive damages” they are not in fact punitive damages. (See *Suman v. Superior Court* (1995) 39 Cal. App. 4th 1309, 1317.)

The last cause of action for a breach of implied warranty of merchantability fares no differently:

> As defined in the Act, an implied warranty of merchantability guarantees that “consumer goods meet each of the following: [¶] (1) Pass without objection in the trade under the contract description. [¶] (2) Are fit for the ordinary purposes for which such goods are used. [¶] (3) Are adequately contained, packaged, and labeled. [¶] (4) Conform to the promises or affirmations of fact made on the container or label.” (Civ.Code, § 1791.1(a).)

(*Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 406.)

It is true that “[w]hen there has been a breach of the implied warranty of merchantability, a buyer ‘may bring an action for the recovery of damages and other legal and equitable relief’ (Civ.Code, § 1794, subd. (a)” (*Ibid.*), fraud must be alleged with sufficient specificity for defendant to fully understand the nature of the charge. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Generally, such specificity requires pleading facts that “show how, when, where, to whom, and by what means the representations were tendered.” (*Ibid.*)

As stated above, there are no causes of action in the operative pleading alleging a basis supporting punitive damages, a point conceded by plaintiff’s lack of an opposition to the instant motion.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 6

25-CIV-00410 DUJUAN GREEN VS. GENERAL MOTORS, LLC

DUJUAN GREEN	DAVID N. BARRY
GENERAL MOTORS, LLC	RYAN KAY

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

CONTINUED FROM 6/30/2026

TENTATIVE RULING:

Plaintiff Dujuan Green's Motion for Attorneys' Fees, Costs and Expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement.

On January 17, 2025, this Song-Beverly case was filed and on October 10, 2025, the parties filed a notice of conditional settlement. The only activity in the court file was a motion for a protective order filed by defendant on May 20, 2025, but this court vacated the hearing and ordered the parties to meet-and-confer to see if they could resolve the motion and the parties did resolve the motion.

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement was reached in this case and plaintiff filed this motion, which defendant has vigorously opposed.

As the prevailing party, plaintiff's counsel are entitled to their attorneys' fees. A buyer who prevails in an action under the Song-Beverly Warranty Act is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105 (*Reynolds*).) The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies should receive reasonable attorneys' fees. (*Reynolds*, at p. 1111.)

Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds*, *supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id*. at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler*, *supra*, 22 Cal.4th at p. 1095].) This Court may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds*, *supra*, 47 Cal.App.5th at pp. 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.'" (citations omitted)].). This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. Plaintiff does not provide evidence of reasonable rates in San Mateo County, but show they have been awarded the requested hourly rate from judges around the state. Defendant does not object to the hourly rate and the Court, based upon its experience, finds the rates reasonable for a Song-Beverely action in San Mateo County.

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: "In referring to 'reasonable' compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424, in which the court "instruct[ed] that the initial lodestar calculation should exclude 'hours that were not reasonably expended' '' and drew an analogy to private billing practices: " 'Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. "In the private sector, 'billing judgment' is an important component in fee setting. It is no less important here. Hours that are not properly billed to one's client also are not properly billed to one's adversary pursuant to statutory authority." ' '' (*Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) "Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel's burden "to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them." (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

Here, Plaintiff's counsels' time entries show 49.10 hours expended for a total of $27,977.00. (Barry Decl., ¶13, Exh. 2.) Plaintiff has withdrawn the request for time anticipated to be spent on a Motion to Tax Costs which was not filed, for a reduction of "10.6 hours at Mr. Matera's hourly rate of $550.00 for a total amount of $5,830.00." (Reply, at p. 6:13-14.) Defendant had requested a reduction of 9.6 hours of time for a total of $5,918.00. (Opp., at p. 7:14.) The actual amount listed on the timesheet as being associated with a Motion to Tax Costs is $6,468.00, with billing mixed between Mr. Barry's rate and Mr. Matera's rate, beginning with an entry to "Review GM's Motion to Tax Costs" at the top of page 9, and ending with time billed for travel at the bottom of page 10. (Barry Decl., ¶13, Exh. 2.) Plaintiff's fee award is therefore reduced by $6,468.00.

Defendant seeks to reduce specific time:

> Defendant argues for a reduction of 2.6 hours amounting to $1,807 in billed time for pre-engagement work, but determining if a client has a meritorious case is compensable and reasonable.
>
> Defendant argues for a reduction of 1.8 hours amounting to $838.50 in billed time for reviewing a motion for protective order, the fact that the motion was necessary, rather than having a joint agreement, means that plaintiff it is reasonable for plaintiff's counsel to try to determine how to obtain from this court an order that was as least restrictive as possible. Thus, the time was reasonable.
>
> Defendant argues for a reduction of 2.8 hours amounting to $1,260.00 in billed time for preparing written discovery requests when there was no need for written discovery because defendant had opted into AB 1755, which requires mandatory disclosures. Plaintiff offers no justification for why discovery was reasonable and the court concludes that it was not reasonable and strikes $1,200.
>
> Defendant argues for a reduction of 6.9 hours amounting to $3,795.00 in billed time for vehicle surrender, including travel. The surrender of the vehicle was reasonably necessary to the prosecution of the action, since it was a term of the parties' settlement agreement. While Defendant argues that attorney travel time is not generally billed to the client, no evidence is offered in support of this argument. This time appears to have been reasonably expended in the prosecution of the action.
>
> Defendant argues for a reduction of 1.7 hours amounting to $1,500.00 in billed time for client communications. Attorneys have a professional duty to communicate with their clients. The time was reasonable.
>
> Defendant argues for a reduction of 2.1 hours amounting to $1,263.50 in billed time for clerical and administrative tasks. The time billed for these tasks was typically mixed with attorney tasks. While the time is compensable, (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 951; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187, the court reduces the hourly rate. The court allows the time, but the time is to be billed at $225.00 per hour, which the court finds is a reasonable hourly rate for the work.

Defendant argues for a reduction of 10.6 hours amounting to $5,945.00 in billed time for this fee motion. This is primarily based on the presentation of similar fee motions filed by counsel. Yet in light of the failure to reach agreement and the vigorous opposition defendant has made to this motion, the court cannot find that the time was unreasonable.

The court finds the costs reasonable and necessarily incurred.

Defendant shall pay the fees and costs within forty-five days of notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order should include the total of the attorneys' fees and costs awarded.

2:00 PM
LINE 7

25-CIV-05213 GENERATION BUILDERS, INC. VS. MICHELLE WHITE, ET AL.

GENERATION BUILDERS, INC.	RICHARD LIU
MICHELLE WHITE	ROBERT S FLETCHER

DEFENDANTS MICHELLE WHITE, ALANA KLEINERMAN, AND LEVIT8 LOUNGE, LLC'S MOTION TO SET ASIDE DEFAULT

TENTATIVE RULING:

The court GRANTS defendants Michelle White, Alana Kleinerman and Levit8 Lounge, LLC's motion for relief from default.

The answer and cross-complaint attached to the declaration of Robert S. Fletcher is not deemed filed, but shall be filed and served by July 29, 2026.

The parties tried to informally resolve this matter, but thus far those efforts have been unsuccessful. The parties each set forth different factual scenarios regarding the communications, the different lawyers for defendants, and the filing of the default, which default was entered by the court on April 1, 2026.

To the court, at this point, it makes no sense to untangle what exactly happened and assign fault. The court relies on the law of this state that abhors forfeiture so that cases can be tried on the merits. The law favors judgments based on the merits, not procedural missteps. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. "As Justice Mosk put it in *Rappleyea [v. Campbell* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].)

Plaintiff's counsel probably did think he was getting the runaround. However, the parties had engaged in efforts to resolve the case without litigation and defendants were intending to file the answer and the court finds that the defense position that even though the time to respond had passed, he did not believe that the default would be entered is mistake, inadvertence, surprise or excusable neglect under Code of Civil Procedure section 473, subdivision (b).

Therefore, the court vacates and sets aside the default. The court denied entry of default judgment because of this pending motion so no default judgment needs to be set aside or vacated.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 8

25-CIV-08993 WEBB RANCH, INC. VS. GARY WEBB AS TRUSTEE OF THE WEBB 2008 FAMILY TRUST, ET AL.

WEBB RANCH, INC.	BRIAN R IRION
GARY WEBB AS TRUSTEE OF THE WEBB 2008 FAMILY TRUST	JOSEPH M. GOETHALS

HEARING FOR THE PURPOSE OF SELECTING APPRAISERS, SETTING THE BOND AMOUNT, AND DETERMINING DEADLINES/SCHEDULING

TENTATIVE RULING:

The court rules on the selection of appraisers and setting of the bond and further scheduling as follows:

The court appreciates the cooperation between counsel and the agreements that they have reached.

Background. On June 10, 2026, the court conditionally granted Plaintiff Webb Ranch, Inc.'s (WRI) "Motion for Order Staying Involuntary Dissolution & Appointing Appraisers to Ascertain Value of Gary Webb's Shares." The June 10, 2026 Order stayed this litigation, pending resolution of the Corporation Code § 2000 appraisal proceeding, and set further hearing date of July 21, 2026 for the purpose of setting a bond amount, appointing appraisers, and addressing further scheduling. After considering the submissions, the court hereby orders the following:

$120,000 bond. Within 30 days of service of notice of entry of this Order, WRI shall post a bond in the amount of $120,000. Based upon the facts as the court understands them, this amount is reasonable to compensate Gary Webb if WRI does not buy out his shares.

At the prior (the June 2, 2026) hearing, WRI argued in favor of a $25,000 bond, while Gary Webb sought a $500,000 bond. Both parties have since significantly changed their position. Following a meet and confer, WRI now proposes a $105,000 bond, while Gary Webb proposes a $150,000 bond. The parties' calculations differ significantly. The parties have hugely different estimates of the appraisal costs, as well as very different estimates of Gary Webb's estimated attorney's fees during the appraisal proceeding. (Compare Hollenberg declaration with Irion declaration, with WRI estimating Webb's fees at $15,000, and Webb estimating his fees at about $150,000.)

The court believes that Webb's attorneys should not have to do as much work as they suggest (155 attorney hours and 60 paralegal hours seem excessive for the appraisal part of the action). The court finds their hourly rate reasonable for this case based upon their experience, but wants to make sure that there is no duplicative work and that if work can be performed by attorneys with a lower hourly rate, that those attorneys be used. However, most of the work will be done by

WRI providing documents and the appraisers doing their work, that is the purpose of the appraisers. The amount of $60,000 charged by each appraiser (possibly totaling $180,000 for three appraisals) seems high, especially in light of the information provided by WRI that there are no horses, ranch, and stables to value.

<u>Three appraisers.</u> Corporations Code § 2000, subdivision (c) instructs that "[t]he court shall appoint three disinterested appraisers to appraise the fair value of the shares owned by the moving parties …" Following the June 10, 2026 hearing, the parties met and conferred and have agreed upon a method for selection of three neutral appraisers. Specifically, the parties propose that each side will nominate one neutral appraiser and, assuming that each nominee is acceptable to the court, these two party-chosen appraisers will then nominate a third neutral appraiser. Corporation Code section 2000, subdivision (c). This selection method appears to have been utilized with approval in *Abrams v. Abrams-Rubaloff & Associates, Inc.* (1980) 114 Cal.App.3d 240, 246.

Both WRI and Gary Webb have proposed that the court appoint the same appraiser that the parties previously used in the pre-litigation mediation with the Hon. Robert Foiles (Ret.). Specifically, Gary Webb has proposed M. Carter Johnson of Singleton Valuation; and WRI has proposed Joseph Orlando of Exit Strategies Group, Inc., each of which participated in the mediation. (See Hollenberg Decl., Ex. A [M. Carter Johnson CV]; Irion Decl., Ex. 1 [Joseph Orlando CV].)

The court approves of the parties' proposal and hereby appoints M. Carter Johnson of Singleton Valuation and Joseph Orlando of Exit Strategies Group, Inc. as two of the three appraisers. These two party-designated appraisers shall then select a mutually acceptable third disinterested appraiser.

<u>Further scheduling/deadlines</u>. The court hereby sets the following schedule/deadline(s):

Within ten (10) of notice of entry of order, Johnson and Orlando shall file and serve a declaration affirming that they accept the appointment, they are disinterested, their hourly fee, the outline of the work that they propose to do, and the proposed cost.

Within thirty days of service of notice of entry of order, the two appointed appraisers shall select a third neutral appraiser and that third arbitrator shall file and serve a declaration with the information provided by the other two arbitrators;

Within forty-five days of notice of entry of order, the three appraisers shall file a timeline for completion of their task.

The court sets a case management conference for October 20, 2026 at 9:30 a.m. in Department 4 for a status update. Zoom appearances are allowed. A joint case management conference statement shall be filed by October 13, 2026.

All documents filed with the court shall also be emailed to Department 4 at Dept4@sanmatocourt.org.

If any of these deadlines need to be modified, the appraisers or parties shall email Department 4 and counsel for the parties and/or appraisers with suggested modifications. If any party objects to the changes, they shall schedule an ex parte hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for WRI shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 9

25-CIV-09351 ALEXANDER ROWLAND, ET AL. VS. ACE FUNDING SOURCE LLC

ALEXANDER ROWLAND	STEVEN J. MIRSKY
ACE FUNDING SOURCE LLC	BARUCH C. COHEN

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFFS ALEXANDER ROWLAND AND LERNALABS, INC.

TENTATIVE RULING:

The court rules on the motion of Steven J. Mirsky, Mirsky Corporate Advisors, APC to be relieved as counsel for plaintiffs Alexander Rowland, Lernalabs, Inc. as follows:

On the notice of motion filed April 13, 2026, plaintiff's counsel put the date of July 7, 2026 as the hearing date, but the clerk's office changed the hearing date to July 21, 2026. The court file shows two proofs of service: (1) filed April 13, 2026 showing proof of service on defense counsel on April 12, 2026 and (2) filed April 17, 2026 showing proof of service on plaintiffs on April 17, 2026. Thus, based upon the change of hearing date by the clerk, plaintiffs' counsel could not have provided proper notice of the July 21, 2026 hearing to defense counsel. It is unclear whether plaintiff was served with notice of the hearing date of July 7 or July 21, 2026. There is no amended proof of service on defense counsel of an amended notice with the court date. Therefore, it is unclear if plaintiffs and defense counsel received proper notice of the hearing date. (Cal. Rules of Court, rule 3.1110(b)(1).) Without proper notice on plaintiffs and defense counsel, the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Even if plaintiffs' counsel can show proof of service of proper service of the motion, the court has concerns regarding granting the motion because of the prejudice to plaintiffs. Based upon the stipulation of counsel, the court continued defendant's motion to enforce the mandatory forum selection clause and dismiss or stay for forum non conveniens until August 4, 2026. At that time, the court had no information regarding either motion. In reviewing this motion, the court notes: (1) the basis for the withdrawal is the non-payment of fees; (2) the complaint specifically alleges that venue is proper in this court because enforcement of the forum selection clause would be unreasonable and substantially diminish plaintiffs' unwaivable rights (complaint ¶¶ 12-26); thus plaintiffs' counsel had contemplated that defendant's motion could be brought, and to make the allegations in the complaint would have researched the issue and formulated the opposition to the motion; and (3) both plaintiffs, but especially Lernalabs, Inc. who is an entity and cannot appear pro per, would be prejudiced by having this potentially case dispositive motion heard two weeks after the motion to withdraw. Therefore, the court DENIES without prejudice the motion to withdraw.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiffs shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 10
25-CLJ-07223 WELLS FARGO BANK, NA VS KYLE A ROBERTSON

WELLS FARGO BANK, NA JON O. BLANDA
KYLE A ROBERTSON

MOTION FOR SUMMARY JUDGMENT PURSUANT TO CCP 437C

TENTATIVE RULING:

The Motion for Summary Judgment (the "Motion") brought by Plaintiff Wells Fargo Bank, N.A. is GRANTED.

Background

Plaintiff alleges that on or about May 31, 2024, it issued Defendant a loan under a written agreement. (Complaint, p.3, BC-1, & Exh. A; *see also* Gibbons Decl., ¶¶ 9-10, & Exh. 1.) However, as of about March 20, 2025, Defendant stopped making payments on the account (Complaint, p.3, BC-2; *see also* Gibbons Decl., ¶¶ 20-21), leaving an unpaid balance of $15,457.51 (Complaint, p.3, BC-4; *see also* Gibbons Decl., ¶¶ 21-22). Plaintiff seeks damages including attorney's fees according to proof (Complaint, p.3, BC-5), and costs of suit (*id*., p.3, BC-6).

On October 30, 2025, Defendant in pro per filed a form Answer that admits all of the statements of the Complaint. (Answer, box 3.b.) Therein, Defendant sets forth as an affirmative defense the statement that: (1) when he lost his income he called Plaintiff to request that payments be paused until he were earning income again, and Plaintiff agreed; (2) he received a statement and learned that his account was sent to collections, so he called Plaintiff again and was told that the account was still with Plaintiff and on hold; (3) he received a Summons and called Plaintiff's counsel about ten times, with no response; and that he called Plaintiff's legal department to recount this series of events, and his interlocutor told him that the agents with whom he had spoken were not supposed to say what he says they did, and that she would alert counsel of record that Defendant was trying to reach him to resolve the situation; and (4) as of October 28, 2025, he had not received a response from Defendant's counsel. However, according to Plaintiff's Qualified Witness, Betsy L. Gibbons, there is no record of any unresolved dispute on Defendant's account (Gibbons Decl., ¶ 19).

Through its Motion, Plaintiff seeks summary judgment of the Complaint, which states a single cause of action.

Legal Standards for Summary Judgment

The California Code of Civil Procedure provides that "[a] party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).)

A motion for summary judgment be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

A plaintiff has met her or his "burden of showing that that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc., § 437c, subd. (p)(1).)

If the plaintiff has met that burden, then the burden shifts to the defendant to show that:

> • a triable issue of one or more material facts exists as to the cause of action or a defense thereto.
>
> The defendant … shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead,
>
> • shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

(*Ibid*. (formatting and bullet points added).) Further:

> The purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.

(*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76.)

The Court must consider all of the evidence and inferences reasonably drawn therefrom "in the light most favorable to" the party opposing the motion. (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) A trial court is justified in granting summary judgment "only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried." (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, "any doubts about the propriety of summary judgment must be resolved in favor of the opposing party." (*Mateel Env't Just. Found. v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (citations omitted).)

Legal Standards for Breach of Contract

> A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.

(*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239 (*Maldonado*).)

The Motion Is Granted.

The first *Maldonado* element is established. (Gibbons Decl., ¶¶ 9-10, & Exh. 1.) The second *Maldonado* element is established. (Gibbons Decl., ¶¶ 13-15, & Exh. 2.) The third *Maldonado* element is established. (Gibbons Decl., ¶¶ 20-21, & Exhs. 1 & 2 (esp. p.55, in Exh. 2).) The fourth *Maldonado* element is established. (Gibbons Decl., ¶ 22, & p.55, in Exh. 2.) Since Plaintiff has proved each element of the breach of contract causes of action, entitling it to judgment thereon (Code Civ. Proc., § 437c, subd. (p)(1)), the burden shifts to Defendant to show the existence of a triable issue of material fact as to the cause of action or a defense thereto (*ibid*.).

To meet this burden, Defendant "shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing" the existence. (*Ibid*.) However, Defendant has filed no Opposition to the Motion. (Code Civ. Proc., § 437c, subd. (b)(2).) While Defendant cannot rely on the denials of his pleadings to meet his burden on the Motion, Defendant's Answer, even if it had been presented in Opposition, is unsworn, and consists only of Defendant's account of how he had asked for his loan payments to pause but this action proceeded instead. (Answer, box 4.) As the Court of Appeal explains:

> An issue of fact can only be created by a conflict of evidence. … . Thus, while the court in determining a motion for summary judgment does not 'try' the case, the court is bound to consider the competency of the evidence presented.

(*Sinai Memorial Chapel v. Dudler* (1991) 231 Cal.App.3d 190, 196-97 (quotation marks and multiple citations omitted.)

Hence, there is no evidence in the record conflicting with Plaintiff's evidence. Accordingly, Plaintiff's eleven undisputed material facts as to the first cause of action (Separate Statement, pp. 2-3) are undisputed and Plaintiff has carried its burden.

Since "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the Motion is GRANTED. (Code Civ. Proc., § 437c, subd. (c).) Plaintiff is to submit a proposed judgment for $15,457.51 for Defendant's debt.

The Court strikes the memorandum of costs for $960.00 as premature because judgment has not been entered. Plaintiff may file a memorandum of costs within the statutory time after judgment is entered.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order and judgment consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE 11

25-CLJ-08366 WELLS FARGO BANK, N.A. VS. STEVEN M BANCROFT

WELLS FARGO BANK, N.A. EDGAR B LOPEZ
STEVEN M BANCROFT

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank N.A.'s unopposed motion for an order deeming the truth of the matters specified in plaintiff's request for admissions for failure to provide proper notice to defendant Steven M. Bancroft.

In the notice of motion, plaintiff put the date of July 7, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 21, 2026. The court file shows a proof of service filed April 14, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 ["court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM
LINE 12

25-CLJ-10141 WELLS FARGO BANK, N.A. VS LUISA P ECHANE

WELLS FARGO BANK, N.A.	JON O. BLANDA
LUISA P ECHANE	PAUL EUM

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank N.A.'s unopposed motion for an order deeming the truth of the matters specified in plaintiff's request for admissions for failure to provide proper notice to defendant Luisa P. Echane.

In the notice of motion, plaintiff put the date of June 30, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 21, 2026. The court file shows a proof of service filed April 20, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 ["court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM
LINE 13

26-CIV-00808 TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION	PATRICK J. WHITEHORN
MICHAEL HARBOUR	CHARLES S. BRONITSKY

MOTION TO REMOVE MECHANIC'S LIEN

CONTINUED FROM 6/30/2026

TENTATIVE RULING:

The Motion to Remove Mechanic's Lien by Defendants and Cross-Complainants Michael Harbour and Andres Mediavilla ("Defendants") is DENIED.

As stated in the court's prior June 30, 2026 Minute Order, Plaintiff Tremin Corporation dba Bay West Builders ("Plaintiff"), a contractor, brings this action seeking payment for work performed on a home improvement contract for real property owned by Defendants. The Complaint alleges that the parties entered into an oral agreement for this work on or about December 9, 2021. (Complaint, ¶ 9.) On November 5, 2025, Plaintiff recorded a Notice and Claim of Mechanics' Lien against the property. (Complaint, Exh. B.) The Complaint includes a cause of action to foreclose on the mechanic's lien. Defendants bring this Motion seeking to remove the mechanic's lien.

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien. (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard S. Wright*), citing *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383.) The inquiry on a motion to remove a mechanic's lien is limited to the probable validity of the lien. (*Id.*, citing *Lambert, supra* at p. 387.) The determination is not the ultimate merit of the contractor's claim, but whether the contractor should be entitled to retain the security of the mechanic's lien pending resolution of the matter. (*Cal. Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.) The granting of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists and removes the lien from the public records upon recordation of the judgment. (*Howard S. Wright, supra*, 106 Cal.App.4th at p. 318.)

Defendants raised two arguments in support of this Motion. The first argument is that the agreement does not comply with Business and Professions Code section 7159 and therefore it is illegal. The second argument is that the lien is invalid because it was not timely recorded. The court previously denied this Motion as to Defendants' second argument that the lien is invalid because it was not timely recorded, and that ruling was not contested. The court, however, requested supplemental briefing as to the first argument.

Procedurally, Plaintiff contends that the first argument was not raised until Defendants' reply and therefore it should be disregarded. Defendants' original memorandum claimed, albeit in the Statement of Facts, that the agreement was illegal because the oral agreement did not comply with section 7159. (Defendants' Memorandum, pp. 2-3.) Even if unclear though, Plaintiff admits that Defendants more clearly raised this argument in reply and cited to *Holm v. Bramwell* (1937) 20 Cal.App.2d 332 (*Holm*) in support. (Plaintiff's Supplemental Briefing, pp. 7:28-8:3.) Since the court thereafter continued this Motion for supplemental briefing by both parties and Plaintiff had an opportunity to respond to this argument, the court finds no basis to now disregard this argument. (See *Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1308 [trial court has discretion to consider new issues raised in reply so long as other party had opportunity to respond].)

Business and Professions Code section 7159, subdivision (c), sets forth provisions for a home improvement contract, including that the contract be in writing and signed and dated by the parties. (See Bus. & Prof. Code, § 7159, subd. (c).) Since the Complaint alleges that the parties entered into an oral agreement to perform the work on the property (Complaint, ¶ 9), Defendants contend the agreement is illegal because it does not comply with section 7159 and therefore the mechanic's lien cannot be enforced.

Citing *Asdourian v. Askew* (1985) 38 Cal.3d 276, 291 (*Asdourian*), superseded by statute on other grounds as stated in *Tufeld Corp. v. Beverly Hills Gateway, L.P*. (2022) 86 Cal.App.5th 12, 27-29, the court noted that a wide range of exceptions has been recognized to section 7159. In *Asdourian*, the court concluded that a contract in violation of section 7159 did not present the type of illegality that automatically renders a contract void, but rather voidable depending on the factual context and the public policies involved. (*Asdourian, supra,* 38 Cal.3d at p. 293.) Further, in compelling cases, illegal contracts will be enforced in order to avoid unjust enrichment to a defendant and a disproportionately harsh penalty to the plaintiff. (*Id.* at p. 292.)

Defendants once again cite *Holm, supra,* 20 Cal.App.2d 332, as support that the mechanic's lien cannot be enforced because it is illegal. In *Holm*, a general contractor sought to recover from an owner money it paid to a subcontractor and to enforce a mechanic's lien. (*Id.*, at pp. 333-334.) The trial court found that the general contractor's claim was founded on an illegal contract because the subcontractor was not licensed, contrary to the law, and therefore the contract was void. (*Ibid*.) The Court of Appeal agreed and held that the trial court properly refused to vest a lien upon the property for payment of the amount sought. (*Id*. at p. 334.) Thus, *Holm* is distinguishable because it involved an unlicensed subcontractor. *Holm* did not deal with an oral contract that failed to comply with section 7159, as discussed in *Asdourian*.

Similarly, Defendants' reliance on *Loving and Evans v. Blick* (1949) 33 Cal.2d 603, does not support their argument. While the California Supreme Court found that a mechanic's lien may not be founded on an illegal contract procured contrary to law, the contract in that case was illegal and void based on the contractors' failure to comply with licensing requirements. (*Loving and Evans, supra*, at pp. 607, 612, 614.) Upon reversal, the California Supreme Court stated that the contractors could present to the trial court any matters that they claimed showed substantial compliance with the licensing requirements so as to avoid a claim of illegality with respect to the contract. (*Id.* at p. 615.) Thus, *Loving and Evans* does not support Defendants' argument that the contract is void for failure to comply with section 7159.

Besides citing *Asdourian*, Plaintiff argues that the contract is not void based on *Hinerfeld-Ward, Inc. v. Lipian* (2010) 188 Cal.App.4th 86, 94-95. The Court of Appeal found that the trial court properly enforced the oral home improvement contract because the project was not a typical home improvement project, but it was a complex, high-end remodel on which the design continued to evolve over the years of planning and construction. (*Ibid*.) The architect repeatedly made changes to the design and described it as unique. (*Id*. at p. 94.) The homeowners also had an advocate on the project that was skilled in construction issues. (*Id.* at p. 95.) Plaintiff provides Toews' Supplemental Declaration as support that Defendants are not unsophisticated homeowners. (Supp. Toews Decl.)

"Generally, doubts concerning the meaning of the mechanics' lien statutes are resolved in favor of the claimant." (*Koudmani v. Ogle Enterprises, Inc.* (1996) 47 Cal.App.4th 1650, 1654.) Here, Defendants have not provided authority to show that the lien is void for failure to comply with section 7159. Based on *Asdourian*, the court finds the contract is not automatically void, but rather voidable depending on the facts. As such, the court cannot conclude at this point that there is no probable validity to the lien, and it denies this Motion.

Defendants filed evidentiary objections to Toews' Supplemental Declaration. Defendants did not number their objections, but instead they cite to specific paragraphs of the declaration. Defendants' objections to paragraphs 3-16 and 18-20 are OVERRULED.

The court notes that there is a case management conference before the Civil Commissioner on August 17, 2026. If the parties file a stipulation to mediation before then, then the case management conference will be vacated and, once mediation is completed, a case management/trial setting conference will be set in Department 4. If the parties would like a case management/trial setting conference in Department 4 so that a trial date can be set while they are engaging in the mediation process, they should jointly email Department 4 and the court will set a case management/trial setting conference.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 14
26-UDL-00441 T. ANNE LASSAHN VS. JOANNE STILES

T. ANNE LASSAHN COREY M. POLLAK
JOANNE STILES

MOTION TO SET ASIDE DEFAULT JUDGMENT

CONTINUED FROM 6/23/2026

TENTATIVE RULING:

Defendant's motion for relief from the default and default judgment entered on May 14, 2026, is DENIED.

This motion was originally heard on June 23, 2026 after the court issued a tentative ruling granting the motion, and the parties appeared at the hearing. Plaintiff had not received the statutory notice, a point raised in her opposition, and requested an opportunity to submit a declaration from the process server, which request the court granted and the parties agreed to this hearing date.

In the prior tentative ruling, the court found that while the Proof of Service, executed by registered process server Jeffrey Pink, indicates defendant was personally served with the summons and complaint, defendant offered evidence sufficient to rebut the presumption of service arising from the Proof of Service. Since the hearing, plaintiff provided a supplemental declaration of Jeffrey Pink, the process server. He provides a detailed account of the events surrounding the service. Defendant's supplemental declaration is insufficient to establish that the events described are false. The court credits Pink's supplemental declaration, including his statement that he was familiar with defendant based upon his prior service of documents on her and the fact that she attempted to avoid having him hand her the documents. Thus, defendant has not established that the default and default judgment are void under Code of Civil Procedure section 473, subdivision (d) for lack of proper service of the summons and complaint.

In the prior tentative ruling, the court found that defendant was entitled to relief from default under Code of Civil Procedure section 473, subdivision (b) because of mistake, inadvertence, and or excusable neglect. The court had credited defendant's statement that she believed that the summons and complaint had been posted and the failure of mailing provided her with additional time to answer. However, the evidence demonstrates that she was personally served. The summons states on its face that she had "10 DAYS, not counting Saturdays and Sundays and other judicial holidays, after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff." Since she was personally served, she had only ten days to respond. As a pro per, she is charged with knowing the law and reasonable diligence on her part, in addition to reading the summons, would have informed her that she only had ten days to respond. Thus, defendant also fails to show that she is entitled to relief under Code of Civil Procedure section 437, subdivision (b).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 15

26-UDL-00752 TERRY MICHAUD DBA HERITAGE REALTY PROPERTY MANAGEMENT VS. LISA KOLVITES

TERRY MICHAUD DBA HERITAGE REALTY PROPERTY MANAGEMENT PRO SE
LISA KOLVITES

MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

When a motion to quash is brought in an unlawful detainer action, the clerk of the court must set the hearing between three and seven days after filing (plus extension for service) and the opposition and reply may be made orally or in writing. (*Cal. Prac. Guide Landlord-Tenant* §§ 8:165 et seq. (TRG Aug. 2025 update).) Thus if plaintiff wishes to orally oppose, he may properly contest the tentative ruling and orally argue the opposition. Defendant would then have an opportunity to orally reply.

The court denies defendant Lisa Kolvites' unopposed motion to quash for lack of sufficient proof of service. The Proof of Service does not indicate where the motion was placed in the mail nor that it was in a sealed envelope with postage prepaid, which information is required under Code of Civil Procedure section 1013a. Thus, the court cannot presume that there has been proper notice of this motion. Without proper notice on plaintiff , the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Substantively, the court also denies the motion. While defendant argues, citing to *Delta Imports, Inc. v. Municipal Court* (1983) 146 Cal. App.3d 1033, 1035, that a defendant can move to quash when the complaint fails to state a cause of action, the California Supreme Court subsequently held that a motion to quash service of summons may not be used to dispute the truth of the allegations in an unlawful detainer complaint. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 402.)

Further, defendant states that plaintiff failed to comply with the Court of Appeal's holding in *Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 459 regarding the required information for a three-day notice. However, the three-day notice is not defective. The purpose of the notice is to inform the tenant of the breach so the tenant can rationally choose whether to cure the breach and retain possession, quit the property, or contest the allegations. (*Id*. at p. 457.) *Eshagian* found the three-day notice at issue to be defective because it did not state when the notice period began or ended, nor did it indicate that the period excluded weekends and judicial holidays. It was dated December 19, 2022, but did not state the date it was served. In contrast, in this case, the notice adequately informed defendant of the date the three-day period began and ended. It states at the top of the notice that it was served on June 17, 2026, and then includes instructions for how to calculate the three-day period. These instructions inform defendant not to count the day of service, that the first day counted must not be a Saturday, Sunday or judicial holiday and then, after the first day counted, def should continue counting only days that are not Saturdays, Sundays or judicial holidays until three such days are counted and that the last of the three such days counted is the deadline by which def must pay the rent demanded or deliver possession to plaintiff.

Since neither party is represented by counsel, if the tentative ruling is uncontested, pursuant to Code of Civil Procedure section 664.5, subdivision (a), the clerk of the court is to mail the minutes of the hearing along with a notice of entry of order and certificate of mailing to all parties.

POSTED: 3:00 PM